United Nations Support Office in Somalia (UNSOS)

Reference: PS/L/22/290/RT
Date: 25 October 2022

Dear Mr Hansen,

Subject: Amendment No. 2 to Contract No: UNSOS/CON/20/029 - For the Supply of Solar Power Energy in Baidoa, Somalia

Attached herewith is an electronic copy of an Amendment No. 2 document of the subject contract for your review and signature by an authorized representative of your company and immediate return to UNSOS by email to tamangr@un.org .

Please contact Ratna Tamang at tamangr@un.org to confirm receipt of this notification.

Your cooperation and attention to this matter are appreciated.

Regards.

Sincerely,

Caterina De Bianchi

Caterina De Bianchi
Chief Procurement Officer

Attn:

Mads Uhlin Hansen
Kube Energy
AXIS Fiduciary Ltd, 2nd Floor, The
AXOS, 26 Cybercity, Ebene, 72201,
Mauritius
Email address: baidoa@kubeenergy.com

Drafted by (initials): RT
Cleared by (initials): AP

AMENDMENT NO 2

To
CONTRACT NO. UNSOS/CON/20/025

Between
THE UNITED NATIONS SUPPORT OFFICE IN SOMALIA (UNSOS)

And
KUBE ENERGY
(Formerly with KUBE ENERGY AS)

FOR THE SUPPLY OF SOLAR POWER ENERGY IN BAIDOA, SOMALIA

WHEREAS The United Nations Support Office in Somalia (UNSOS) and KUBE ENERGY AS (the Contractor), hereinafter referred to as the "Parties" entered into Contract No. UNSOS/CON/20/025 for the Supply of Solar Power Energy in Baidoa, Somalia to UNSOS in Somalia, signed on 14 November 2020 (hereinafter referred to as "the Contract"); and,

WHEREAS, the Contractor wishes to assign the Contract to its wholly owned subsidiary, KUBE Energy and UNSOS agrees. The Assignment Agreement to this effect was signed by the Contractor (the assignor) and KUBE Energy (the assignee) on 4 October 2022.

WHEREAS, the United Nations inserted the latest Article No. 16.2 (Arbitration) of the United Nations General Conditions of Contract and the Contractor agrees;

NOW, THEREFORE, the Contract is amended as follows:

1. The Contractor shall mean KUBE Energy, a company organized under the laws of Mauritius incorporated in Mauritius on 17 November 2021, under the Companies Act 2001 of Mauritius, with registration number 183900 and having its principal office, c/o AXIS Fiduciary Ltd, 2nd Floor, The AXIS, 26 Cybercity, Ebene, 72201, Mauritius.

2. Article 16.2 (Arbitration) of the United Nations General Conditions of Contract General Conditions (ANNEX A) shall be deleted in its entirety and replaced by the following:
   16.2 ARBITRATION: Any dispute, controversy, or claim between the Parties arising out of the Contract or the breach, termination, or invalidity thereof, unless settled amicably under Article 16.1, above, within sixty (60) days after receipt by one Party of the other Party's written request for such amicable settlement, shall be referred by either Party to arbitration in accordance with the UNCITRAL Arbitration Rules then obtaining. The decisions of the arbitral tribunal shall be based on general principles of international commercial law. The arbitral tribunal shall be empowered to order the return or destruction of goods or any property, whether tangible or intangible, or of any confidential information provided under the Contract, order the termination of the Contract, or order that any other protective measures be taken with respect to the goods, services or any other property, whether tangible or intangible, or of any confidential information provided under the Contract, as appropriate, all in accordance with the authority of the arbitral tribunal pursuant to Article 26 ("Interim measures") and Article 34 ("Form and effect of the award") of the UNCITRAL Arbitration Rules. The arbitral tribunal shall have no authority to award punitive damages. In addition, unless otherwise expressly provided in the Contract, the arbitral tribunal shall have no authority to award interest in excess of the

United States Federal Reserve Bank of New York's Secured Overnight Financing Rate ("SOFR") then prevailing, and any such interest shall be simple interest only. In light of the privileges and immunities of the United Nations, references in the UNCITRAL Arbitration Rules to the place of arbitration shall connote only the actual location for the arbitral proceedings but shall not mean the "seat" or "juridical seat" or "juridical place" for such proceedings. The Parties shall be bound by any arbitration award rendered as a result of such arbitration as the final adjudication of any such dispute, controversy, or claim.

All other terms and conditions of Contract UNSOS/CON/20/025, as amended, shall remain unchanged.

IN WITNESS THEREOF, the Parties hereto have caused their duly authorized representatives to execute this Amendment 2 to the Contract as of the date written below.

FOR AND ON BEHALF OF
KUBE ENERGY

By: _____
(Signature)
Name: Mads Uhlin Hansen
Title: Director

Date: 28/10/2022

FOR AND ON BEHALF OF
UNSOS

By: Caterina De Bianchi
(Signature)
Name: Caterina De Bianchi
Title: Chief Procurement Officer

Date: 13-12-22